

IN THE HIGH COURT OF MEGHALAYA

MC (EP) No. 276 of 2013 in El. Petn. No. 2 of 2013

Shri Lamboklang Myllem
Son of Modrick Nongkynrih
Resident of House No. 31,
Ronghuna, Post Office
Byrnihat, in the District of Ri
Bhoi, Meghalaya – 793101.

.....APPLICANT

-VERSUS-

1. Shri Barnabas Nongbah
Son of Late Basil Langstang
Resident of Killing village, Post
Office Byrnihat, Police Station
Khanapara, in the District of Ri
Bhoi, Meghalaya – 793101
2. Shri Sosthenes Sohtun
Son of Late P. Warjri
Resident of Lum Nongthymmai,
Post Office Byrnihat, in the District of
Ri Bhoi, Meghalaya – 793101
3. Shri Martin Lyngdoh
Son of Late N.K. Dkhar
Resident of Langmai, Raid Marwet,
Post Office Byrnihat,
in the District of Ri Bhoi,
Meghalaya – 793101
4. Abraham S. Sangma
Son of Late Mogendro Ch. Marak
Resident of Dehalbagan,
Police Station Nongpoh,
Post Office Byrnihat, in the District
of Ri Bhoi, Meghalaya – 793101
5. Wonderlyne Lapang
Son of Late Phulishon Dkhar
Resident of Lum Nongthymmai,
Post Office Byrnihat, in the District of
Ri Bhoi, Meghalaya – 793101
6. Returning Officer
10 Jirang (ST) Assembly
Constituency.
(Deputy Commissioner, Ri
Bhoi District) Nongpoh,
Meghalaya – 793102
7. Election Commission of India.
Nirvachan Sadan, Asoka
Road, New Delhi – 110001.

.....RESPONDENTS

**BEFORE
THE HON'BLE MR JUSTICE SR SEN**

Advocate for the Petitioner	:	Mr. D Mazumdar
Advocate for the Respondents	:	Mr. AK Bhattacharjee
Date of Hearing	:	24.09.13
Date of Judgment and Order	:	07.10.13

JUDGMENT AND ORDER

The instant petition is filed by the petitioner/respondent praying for striking out Para-17, 18, 19, 20, 23(a), 23 (b), 23(c), 23(d), 24, 25, 26, 27, 28 & 29 of the Election Petition bearing No. 2 of 2013 and further prayed for rejection of the Election Petition. In other words, it can be said that the petitioner/respondent challenged the maintainability of the Election Petition No. 2 of 2013.

2. Mr. D Mazumdar, the learned counsel appearing for on behalf of petitioner argued that the Election Petition does not disclosed how and in what manner opposite party has materially affected. Since the averments of the Election Petition No. 2 of 2013 are silent about the materially affected, therefore, it cannot survive. The learned counsel further argued that, the averments made in the Election Petition is a mere statement without any supporting materials, hence, from that point of view also the Election Petition No. 2 of 2013 has no legs to stand and needs to be rejected.

3. Mr. AK Bhattacharjee, the learned senior counsel appearing for on behalf of the opposite party argued that the petitioner failed to disclose his real assets and liabilities which is one of the requirements under The Representation of People Act. By not disclosing the assets and liabilities, he has deprived the statutory rights of the voters of the constituency. The learned senior counsel further argued that, had the petitioner disclosed his assets and liabilities his nomination paper would have been rejected as he has huge dues to be paid to the Government, therefore, the contentions advanced by the learned counsel for the petitioner are not correct, so the petition may be rejected.

4. In course of the arguments, the learned counsel relied on **(2012) 11 SCC 390 reported in the case of Shambu Prasad Sharma vrs Charandas Mahant & Ors; (2012) 3 SCC 314 reported in the case of Mangani Lal Mandal vrs Bishnu Deo Bhandari; (2009) 10 SCC 541 reported in the case of Ram Sukh vrs Dinesh Aggarwal; AIR (1954) Vol. 41 reported in the case of Vashist Narain Sharma vrs Dev Chandra & Ors.; (2003) 4 SCC 399 reported in the case of People's Union for Civil Liberties & Anr. Vrs Union of India & Anr.; (2002) 5 SCC 294 reported in the case of Union of India vrs Association for Democratic Reforms & Anr.; (2011) 2 SCC 532 reported in the case of Kalyan Kumar Gogoi vrs Ashutosh Agnihotri & Anr. and Election Petition No. 10 of 2004 passed by Bombay High Court reported in the case of Shri. Arun Dattatray Sawant vrs Shri. Kisan Shankar Kathore dated 16th August 2007.**

5. After hearing the submissions advanced by the learned counsel for the parties, two crux issues found involved in this instant petition are as follows: (I) Whether the petition is incomplete to show how and in what manner the opposite party has materially affected and (II) Whether Election Petition No. 2 of 2013 has sufficient pleadings to survive.

6. I have perused the Election Petition specifically Para-23 of the Election Petition bearing No. 2 of 2013. On perusal of the averments made therein, I find that details are available along with the Annexures. Rules-4A of the Representation of the People Act, 1951 makes clear provision that:

“The candidate or his proposer, as the case may be, shall, at the time of delivering to the returning officer the nomination paper under sub-section (1) of the section 33 of the Act, also deliver to him an affidavit sworn by the candidate before a Magistrate of the first class or a Notary in Form 26”.

7. The Hon'ble Apex Court in the case of **Shambu Prasad Sharma vrs Charandas Mahant & Ors reported in (2012) 11 SCC 390** at Para-9 observed that:

“9. This Court recognised the right of the voters in this country to know about the particulars and antecedents of the candidates who would represent them in Parliament where laws concerning their liberty and property may be enacted, and declared that the right of freedom of speech and expression guaranteed under Article 19(1)(a) of the Constitution would include the freedom of the voter to cast his

vote, for which purpose the voter was entitled to know everything that would enable him to make the right choice. It was with that salutary object in mind that this Court issued directions to the Election Commission to call for information on affidavit from each one of the candidates seeking election to Parliament or the State Legislatures as an essential part of his nomination papers furnishing therein information on the following aspects in relation to his/her candidature: (Assn. for Democratic Reforms case, SCC p. 322, para 48)

- (1) Whether the candidate is convicted/acquitted/discharged of any criminal offence in the past – if any, whether he is punished with imprisonment or fine.***
- (2) Prior to six months of filing of nomination, whether the candidate is accused in any pending case, of any offence punishable with imprisonment for two years or more, and in which charge is framed or cognizance is taken by the court of law. If so, the details thereof.***
- (3) The assets (immovable, movable, bank balance, etc.) of a candidate and of his/her spouse and that of dependants.***
- (4) Liabilities, if any, particularly whether there are any overdues of any public financial institution or government dues.***
- (5) The educational qualifications of the candidate.”***

8. I have perused the observations made by the Apex Court and it is clearly understood that, certain guidelines have already been formulated and the candidate is bound to disclose his entire antecedents including his financial assets and liabilities for the interest of the voters. The voters have every right to know the antecedents of the candidate for whom they are going to cast their votes. If details of antecedents of the candidate are not available, in my view the voters will not get the chance to choose the right candidate, as a result, they will be deprived of their statutory rights to cast their votes of their right choice. In case, if details of antecedents of a candidate are not furnished in the affidavit while filing nomination, it will amount to flouting of voters which is not permissible at all.

9. In this instant case, since I have already discussed above Para-23 of the Election Petition, it appears that the assets and liabilities were not disclosed by the petitioner/respondent. If it is so, definitely it has materially affected the opposite party. Had the petitioner/respondent disclosed all his

assets and liabilities, the situation might have been different. However, this is a matter of evidence, so I do not want to make any comment at this stage. The Hon'ble Supreme Court in the case of ***People's Union for Civil Liberties & Anr. Vrs Union of India & Anr. reported in (2003) 4 SCC 399*** at Para-78 was pleased to observe that:

“Voters’ fundamental right to know the antecedents of a candidate is independent of statutory rights under the election law. A voter is first citizen of this country and apart from statutory rights; he is having fundamental rights conferred by the Constitution. Members of a democratic society should be sufficiently informed so that they may cast their votes intelligently in favour of persons who are to govern them. Right to vote would be meaningless unless the citizens are will informed about the antecedents of a candidate.”

10. So after perusal of this judgment, it is also further clear that a candidate is bound to disclose his entire antecedents and just cannot flout the voters by hiding a portion of his assets and liabilities. Similarly, observation was made by Supreme Court in the case of ***Union of India vrs Association for Democratic Reforms & Anr. reported in (2002) 5 SCC 294*** at Para-22 where the Hon'ble Apex Court observed that:

“They have right to elect or re-elect on the basis of the antecedents and past performance of the candidate. The voter has the choice of deciding whether holding of educational qualification or holding of property is relevant for electing or re-electing a person to be his representative. Voter has to decide whether he should cast vote in favour of a candidate who is involved in a criminal case. For maintaining purity of elections and a healthy democracy, voters are required to be educated and well informed about the contesting candidates. Such information would include assets held by the candidate, his qualification including educational qualification and antecedents of his life including whether he was involved in a criminal case and if the case is decided – its result, if pending – whether charge is framed or cognizance is taken by the court. There is no necessity of suppressing the relevant facts from the voters”.

11. Therefore, after perusal of the Election Petition No. 2 of 2013 as well as rules and laws for the reasons discussed above, I am of the considered view that, prima facie it appears that the opposite party is materially affected by non-disclosure of the assets and liabilities as alleged in the Election Petition which is a subject matter of evidence. Therefore, I am of the conclusive view that, at this stage the Election Petition No. 2 of 2013

cannot be dismissed and I am unable to accept the submissions advanced by the learned counsel for the petitioner/respondent.

12. Accordingly, the instant Misc. Application No 276 of 2013 is rejected and the matter stands disposed of. Let the parties file their written statements and suggested issues in the Election Petition No. 2 of 2013 by the next date fixed.

JUDGE

V. Lyndem